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6 **UNITED STATES DISTRICT COURT**
7 **WESTERN DISTRICT OF TEXAS**
8 **AUSTIN DIVISION**

8 KOSTIANTYN MARS

9 Plaintiff,

10 vs.

11 STATE OF CALIFORNIA;

12 GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

13 BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

14 JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

15 SANTA CLARA COUNTY SUPERIOR COURT;

16 HANNA MARS

17 (Petitioner in the above-referenced state matters);

18 and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
19 Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

20 Defendants.

) Case No. :

)
) **CIVIL RICO COMPLAINT**
) **(18 U.S.C. §§ 1961–1968;**
) **42 U.S.C. § 1983)**

) **DATE:**
) **TIME:**
) **DEPT:**

21
22 **CIVIL RICO COMPLAINT**
23 **(18 U.S.C. §§ 1961–1968; 42 U.S.C. § 1983)**
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I. INTRODUCTION

1. Plaintiff Kostiantyn Mars brings this civil action under the Racketeer Influenced and Corrupt Organizations Act (RICO), 18 U.S.C. § 1964(c), and 42 U.S.C. § 1983 for damages and equitable relief.
2. This action arises from a coordinated pattern of racketeering activity conducted under color of California state authority between 2022 and the present. The enterprise has resulted in the international abduction of Plaintiff's minor son Max Mars, extortion of Plaintiff's 401(k) funds, vehicle title, and the minor child's passport and identity documents, fabricated criminal charges, unlawful arrests and warrants, denial of access to the courts, and systemic obstruction of justice.

II. JURISDICTION AND VENUE

1. This Court has subject-matter jurisdiction pursuant to 28 U.S.C. § 1331 and 18 U.S.C. § 1964(c).
2. Supplemental jurisdiction exists under 28 U.S.C. § 1367 over related state-law claims.
3. Venue is proper in the Western District of Texas under 28 U.S.C. § 1391(b) because Plaintiff resides in Austin, Texas, and a substantial part of the harm continues to be felt in this District.

III. THE CRIMINAL ENTERPRISE

1. Defendants formed and participated in an association-in-fact enterprise (the "Santa Clara Mafia Cartel," also known as the BBMP syndicate) that operated in criminal cooperation with the Ukrainian mafia cartel "Kodlo Gondona" ("SI Trans Group"), led by criminal associates Ivan "Pedofile" Omelchenko and Serhii "Gondon" Nahornyy, father of Respondent Hanna Mars.
2. The purpose of this interstate and international criminal enterprise was to extort money and assets from Plaintiff, traffic his minor son Max Mars outside the United States to Ukraine into the custody of Serhii "Gondon" Nahornyy, and conceal judicial corruption through the abuse of state court authority.
3. The Santa Clara Mafia Cartel (disqualified judges Lowney, Flint, Towery, criminal court judges Kuhnle, Williams, Clark, and DCSS official Jessica Tenorio) provided the color-of-law mechanism with cover-up by judicial oversight officials (Presiding Judges

Beth McGowen and Julie Emede, California Commission on Judicial Performance staff member Tania Schrag), while Ukrainian mafia cartel “Kodlo Gondona” supplied the foreign execution arm, enabling the international abduction of Plaintiff’s son Max Mars, extortion of Plaintiff’s 401(k) funds and vehicle title, and the infliction of severe damages through fabricated criminal charges, unlawful incarceration, and denial of court access.

IV. PREDICATE ACTS OF RACKETEERING

Each of the following constitutes a predicate act under 18 U.S.C. § 1961(1):

1. **Extortion** (18 U.S.C. § 1951) - Coordinated threats of incarceration and denial of hearings by disqualified Judge Stephen Lowney used to coerce surrender of Plaintiff’s 401(k) division (through court-appointed expert Barbara Strasen instead of the official plan-provider QDRO), vehicle title, and minor child Max Mars’s passport, green card, and identity documents.
2. **Kidnapping and Child Trafficking** (18 U.S.C. § 1201) - Joint facilitation by the Santa Clara Mafia Cartel and Ukrainian mafia cartel “Kodlo Gondona” of the international abduction of Plaintiff’s son Max Mars outside the United States to Ukraine into the custody of Serhii “Gordon” Nahornyy.
3. **Mail and Wire Fraud / Money Laundering (18 U.S.C. §§ 1341, 1343, 1956)** - Transmission of falsified financial documents and court orders to support unlawful wage garnishment in DCSS Case No. 200000002626999 and transfer of extorted funds to private accounts connected with the criminal enterprise using international channels.
4. **Obstruction of Justice and Retaliation** (18 U.S.C. § 1503) - Continuation of adjudication after disqualification of judges Lowney, Flint, and Towery, denial of hearings, and concealment of disqualifications by presiding judges.
5. **Retaliation Against Witness** (18 U.S.C. § 1513) - Fabrication of criminal charges (B2402220), issuance of multiple arrest and bench warrants, and the void vexatious litigant order dated March 11, 2024 by disqualified Judge Lowney to silence Plaintiff and deny access to the courts.

These acts form a continuous pattern of racketeering activity spanning multiple years.

1 **V. INJURY TO PLAINTIFF**

2 As a direct and proximate result of Defendants' racketeering activity, Plaintiff has suffered:

- 3
- 4 • Loss of custody and companionship of Plaintiff's minor child Max Mars;
 - 5 • Unlawful seizure of approximately \$200,000 in assets by unlawful wages garnishment via DCSS Case 200000002626999;
 - 6 • Destruction of employment opportunities and professional reputation;
 - 7 • Severe emotional distress, ongoing threat of unlawful incarceration under the coordinated
 - 8 racketeering activity.

9 **VI. CAUSES OF ACTION**

10 **Count I** – RICO § 1962(c): Conduct of the Enterprise Through a Pattern of Racketeering Activity

11 **Count II** – RICO § 1962(d): Conspiracy to Engage in Racketeering Activity

12 **Count III** – Deprivation of Civil Rights (42 U.S.C. § 1983)

13 **Count IV** – Obstruction of Justice (18 U.S.C. § 1503 et seq.)

14 **VI. PRAYER FOR RELIEF**

15 WHEREFORE, Plaintiff respectfully requests that the Court:

- 16 1. Accept jurisdiction over all removed state proceedings and exercise supplemental
- 17 jurisdiction pursuant to 28 U.S.C. § 1367;
- 18 2. Declare all orders issued by disqualified judges Andrea Flint, Stephen Lowney, and
- 19 James Towery in the removed cases void *ab initio* under California Code of Civil
- 20 Procedure § 170.4(d);
- 21 3. Permanently enjoin Defendants from enforcing any orders, warrants, or judgments issued
- 22 in the removed state proceedings;
- 23 4. Award Plaintiff compensatory damages in excess of **\$750,000** for economic injuries,
- 24 including but not limited to unlawful wage garnishment, blocked 401(k) retirement funds,
- 25 theft of the VW Tiguan, lost wages and employment opportunities, credit damage, and
- 26 bankruptcy-related losses;
- 27 5. Award Plaintiff **treble damages** pursuant to 18 U.S.C. § 1964(c) in excess of **\$2,250,000**
- 28 for injuries caused by Defendants' racketeering activity, including the unlawful DCSS
- wage garnishment;

6. Award Plaintiff punitive and exemplary damages in the amount of **\$5,000,000** or in such amount as the Court deems just and proper;
7. Award Plaintiff pre- and post-judgment interest at the maximum legal rate, together with costs of suit and reasonable attorney's fees pursuant to 18 U.S.C. § 1964(c) and 42 U.S.C. § 1988;
8. Order the immediate release of all blocked 401(k) funds, return of the VW Tiguan (or its fair market value), cessation of all DCSS garnishment and arrears accrual, and expungement of the fabricated criminal record and vexatious litigant designation;
9. Restore full legal and physical custody of minor child Max Mars to Plaintiff and direct appropriate federal authorities to assist in the child's return from international abduction;
10. Grant all equitable relief requested in the concurrently filed Notice of Removal and Emergency Motion for Temporary Restraining Order, including dismissal of Criminal Case B2402220, dismissal of DCSS Case 200000002626999, vacatur of all void orders, restoration of custody of Max Mars, release of 401(k) funds, return of vehicle, name changes, and removal from the vexatious litigant list;
11. Grant such other and further relief as this Court deems just and proper.

Respectfully submitted,

DATED: April 8, 2026


KOSTIANTYN MARS
Pro Se

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